

**SUBSTITUTE FOR
HOUSE BILL NO. 5319**

A bill to amend 1931 PA 328, entitled
"The Michigan penal code,"
by amending section 45a (MCL 750.45a), as added by 2018 PA 445.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 45a. (1) Subject to subsection (2), a person shall not
2 ~~knowingly and intentionally~~ use an unmanned aircraft in a manner
3 that interferes with the operations of a key facility, a
4 correctional facility, ~~or other a~~ law enforcement facility, **or any**
5 **other critical infrastructure.**

6 (2) If a facility listed under subsection (1) is included on
7 the Federal Aviation Administration's registry of fixed site
8 facilities under section 2209 of the FAA extension, safety, and
9 security act of 2016, Public Law 114-190, a person shall not fly or



1 cause an unmanned aircraft to hover over the facility.

2 (3) Beginning 90 days after the effective date of the
3 amendatory act that added this subsection, a person shall not fly
4 or cause an unmanned aircraft to hover over a key facility, a
5 correctional facility, a law enforcement facility, or any other
6 critical infrastructure. This subsection applies only to the extent
7 that this subsection is not preempted by federal law.

8 (4) Beginning 90 days after the effective date of the
9 amendatory act that added this subsection, a person shall not
10 trespass on a key facility, a correctional facility, a law
11 enforcement facility, or any other critical infrastructure by
12 piloting an unmanned vehicle on land or in water that is part of a
13 key facility, or by causing an unmanned vehicle to trespass on land
14 or in water that is part of a key facility, correctional facility,
15 law enforcement facility, or critical infrastructure.

16 (5) Except as otherwise provided in subsection (6), a person
17 who violates this section is guilty of a misdemeanor punishable by
18 imprisonment for not more than 90 days, a fine of not more than
19 \$500.00, or both.

20 (6) ~~(3)~~—A person who knowingly and with malicious intent
21 violates this section is guilty of a felony punishable by
22 imprisonment for not more than 4 years, ~~or~~ a fine of not more than
23 \$2,500.00, or both.

24 (7) ~~(4)~~—This section does not apply to a ~~commercial operator~~
25 ~~of an unmanned aircraft if the unmanned aircraft is operated~~
26 ~~pursuant to and in compliance with Federal Aviation Administration~~
27 ~~regulations, authorizations, and exemptions.~~ **any of the following:**

28 (a) A public safety agency operating an unmanned aircraft or
29 other unmanned vehicle.



1 (b) A person authorized to access privately owned critical
2 infrastructure or a key facility operating an unmanned aircraft or
3 unmanned vehicle for the purpose of inspecting, maintaining,
4 repairing, constructing, or otherwise working on that critical
5 infrastructure or key facility.

6 (c) A person operating an unmanned aircraft or unmanned
7 vehicle over or on critical infrastructure or a key facility with
8 the consent of the owner or operator of the critical infrastructure
9 or key facility.

10 (8) ~~(5)~~—As used in this section:

11 (a) "Critical infrastructure" means that term as defined in
12 section 2 of the cyber civilian corps act, 2017 PA 132, MCL 18.222.

13 (b) ~~(a)~~—"Key facility" means that term as defined in section
14 552c.

15 (c) ~~(b)~~—"Unmanned aircraft" means that term as defined in
16 section 3 of the unmanned aircraft systems act, 2016 PA 436, MCL
17 259.303.

18 (d) "Unmanned vehicle" means a water- or land-based vehicle
19 that is piloted remotely, or autonomously through use of an on-
20 board computer, communication links, and any additional equipment
21 that is necessary for the vehicle to operate safely.